

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUDF047150: NOOSHIN VAHDANI vs MS. NAZILLA RASTEGARI

09/14/2026 in Department 43

Motion to Require Plaintiff to Furnish Security and for Stay Pursuant to CCP 391.1-391.6

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant's Motion to Require Plaintiff to Furnish Security and for Stay Pursuant to Code of Civil Procedure Section 391.1-391.6.

Tentative Ruling: Defendant's Motion to Require Plaintiff to Furnish Security and for Stay Pursuant to Code of Civil Procedure Section 391.1-391.6 is DENIED without prejudice. The memorandum of points and authorities vastly exceeds the page limitations of California Rules of Court, Rule 3.1113. Any subsequent filings must comply with the California Rules of Court or first obtain leave of court.

Moving party is ordered to serve notice of the Court's ruling.

DISCUSSION

Format of Motion Papers:

The memorandum portion of Defendant's Motion is 34 pages. The declaration and exhibits filed in support of Defendant's Motion total 391 pages.

The memorandum portion of Plaintiff's Opposition is 16 pages. The declarations and exhibits filed in support of Plaintiff's Opposition total 73 pages.

Defendant's Reply is 12 pages. The declarations and exhibits filed in support of Defendant's Reply total 11 pages.

The Court counts 21 separate documents totaling 877 pages filed relative to this single motion including requests for judicial notice, declarations, exhibits, evidentiary objections, and notices of errata.

California Rules of Court, Rule 3.1113, limits the length of memoranda as follows:

(d) Length of memorandum

Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.

(e) Application to file longer memorandum

A party may apply to the court ex parte but with written notice of the application to the other parties, at least 24 hours before the memorandum is due, for permission to file a longer memorandum. The application must state reasons why the argument cannot be made within the stated limit. ¶ . . . ¶

(g) Effect of filing an oversized memorandum

A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.

The Court has discretion to refuse to consider a late filed paper. (Cal. Rules Court (Rules), Rule 3.1300, subd. (d).)

The points and authorities of the motion exceed the limit on length of memorandum proscribed by the California Rules of Court by nearly twice the length permitted. Defendant failed to request leave to file a memorandum which exceeds the length limit. The reply brief also exceeds the applicable page limit. Plaintiff's Opposition also exceeds the page limit, though nominally, and some leeway is afforded to Plaintiff given the excessive length of Defendant's memorandum.

Based on the moving party's blatant disregard of the limits set forth in the Rules of Court, and the significant volume of the additional filings and the burden placed on the court by same, the Court exercises its discretion to refuse to consider Defendant's motion. It is denied without

prejudice. To avoid anticipated future issues, the Court makes a finding now that no good cause exists for the memoranda on this motion to exceed the applicable page limits. Both parties are warned that future violation of the Rules of Court and/or local court rules may subject the parties to appropriate sanctions. The parties are also cautioned that the filing of voluminous materials that are not essential to the determination of any matter is strongly discouraged. Quality is favored over quantity.